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Case Number: 24NNCV00806 Hearing Date: July 17, 2026 Dept: A

motion TO STRIKE

Los

Angeles Superior Court Case # 24NNCV00806

MP: Defendant

Universal City Studios, LLC

RP: Plaintiffs Debra Biane and Gerald Biane

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Debra Biane, Gerald Biane, Josh Taylorson, and Sami-Joh Goldberg (collectively "Plaintiffs") allege that, on April 7, 2022, they

were visitors of Universal City Studios

LLC's

("Defendant") amusement park. Plaintiffs

allege that a malfunction in the "Harry Potter and the Forbidden Journey" ride

caused the ride to stall, trapping Plaintiffs for approximately one hour. Plaintiffs allege they sustained serious injury due to being trapped on the ride.

The Second Amended Complaint ("SAC"), filed February 23,

2026, alleges: (1) Premises Liability; (2) Negligence; (3) Common Carrier

Liability; (4) Negligent Infliction of Emotional Distress; and (5) Loss of

Consortium.

On April 3, 2026, Plaintiffs Sami-Joh Goldberg and Josh

Taylorson dismissed the complaint with prejudice. As such, the remaining Plaintiffs are Debra

Biane and Gerald Biane.

MOTION ON CALENDAR:

On March 25, 2026, Defendant filed a Motion to Strike

Portions of the SAC. On July 6, 2026, Biane

Plaintiffs filed an opposition. On July 10, 2026, Defendant

filed a reply.

LEGAL STANDARD:

Motions to strike are used to reach defects or

objections to pleadings that are not challengeable by demurrer, such as words,

phrases, and prayers for damages. (See C.C.P. §§ 435, 436, and 437.) The proper

procedure to attack false allegations in a pleading is a motion to strike.

(C.C.P. § 436(a).) In granting a motion to strike made under C.C.P. § 435,

"[t]he court may, upon a motion made pursuant to Section 435 [notice of motion

to strike whole or part of complaint], or at any time in its discretion, and upon

terms it deems proper: (a) Strike out any irrelevant, false, or improper matter

inserted in any pleading." (C.C.P. § 436(a).) Irrelevant matters include

immaterial allegations that are not essential to the claim or those not

pertinent to or supported by an otherwise sufficient claim. (C.C.P. § 431.10.)

The court may also "[s]trike out all or any part of

any pleading not drawn or filed in conformity with the laws of this state, a

court rule, or an order of the court." (C.C.P. § 436(b).)

MEET AND CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) requires that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (Babajanian Decl., ¶¶5-8.)

ANALYSIS:

Defendant moves to strike allegations for punitive damages in paragraphs 21-26, 34-39, and 50-55, and the Prayer for Relief at paragraph 3 in the SAC.

The requests for punitive damages are made in connection with the First Cause of Action for Premises Liability (¶¶21-26), Second Cause of Action for Negligence (¶¶34-39), and Third Cause of Action for Common Carrier Liability (¶¶50-55).

A complaint including a request for punitive damages must include allegations showing that the plaintiff is entitled to an award of punitive damages. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A claim for punitive damages cannot be pleaded generally and allegations that a defendant acted "with oppression, fraud and malice" toward plaintiff are insufficient legal conclusions to show that the plaintiff is entitled to an award of punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Specific factual allegations are required to support a claim for punitive damages. (Id.)

Civil Code §

3294 authorizes a plaintiff to obtain an award of punitive damages when there is clear and convincing evidence that the defendant engaged in malice, oppression, or fraud. Section 3294(c) defines the terms in the following manner:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's

rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

Further, when the punitive damages are sought against an employer, Civil Code § 3294(b) requires the plaintiff to establish the following:

(1) the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized,

(2) the employer ratified the wrongful conduct for which the damages are awarded, or

(3) the employer was personally guilty of oppression, fraud, or malice.

With respect to a corporate employer, section 3294(b) requires that the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

In the Premises Liability Cause of Action, Plaintiffs allege they went on the Harry Potter ride and the rollercoaster came to an abrupt stop for nearly an hour. (SAC, ¶12.) They allege that Defendant owned, possessed, controlled, occupied, supervised, inspected, leased, maintained, and/or managed the subject premises; Defendant had a duty to use reasonable care to keep the area in a safe condition; Defendant breached that duty by failing to use reasonable care to protect Plaintiffs from a foreseeable harm, including failing to remedy or remove an unsafe rollercoaster and give adequate warning of a dangerous/unsafe condition; Defendant created and knew about the condition; and Defendant's breach caused Plaintiffs' damages. (Id., ¶¶13-18.)

With respect to punitive damages, Plaintiffs claim that Defendant's actions were conducted with malice and willful/knowing disregard of another's rights and that they were aware of the probable dangerous consequences of their

conduct but failed to avoid such consequences, such that Plaintiffs were entitled to punitive damages. (Id.,

¶21.) Plaintiffs are informed and

believe that Defendant, its employees, agents, independent contractors, servants, officers, directors, and managing agents: (a) intentionally designed, constructed, maintained, and operated the rollercoaster to restrain each passenger in a seat within a passenger cart attached to a robotic arm and to utilize the robotic arm to manipulate passengers' orientations in space through a range that generally spanned from head-up to upside-down; (b) intentionally designed, constructed, maintained, and operated the rollercoaster to stop in place in the event of loss of electrical power, malfunction, or other triggering event, and to restrain each passenger in the position he or she occupied at the time of the stop irrespective of any injury inflicted upon the passenger by such restraint; (c) hired, failed to reprimand, and/or, failed to dismiss (i) employees who were not adequately qualified to maintain, operate, monitor, and supervise the rollercoaster, and (ii) employees who were not adequately qualified to monitor, supervise, and care for the health, safety, and well-being of passengers on the rollercoaster; (d) failed to sufficiently train/retrain employees (i) in maintaining, operating, monitoring, and supervising the rollercoaster, and (ii) in monitoring, supervising, and caring for the health, safety, and well-being of passengers on the rollercoaster; (e) understaffed the rollercoaster in relation to levels reasonably required (i) to safely maintain, operate, monitor, and supervise the rollercoaster, and (ii) to monitor, supervise, and care for the health, safety, and well-being of passengers on the rollercoaster; (f) consciously failed to establish, to implement, and/or to enforce policies, practices, and procedures reasonably required (i) to safely maintain, operate, monitor, and supervise the rollercoaster, (ii) to monitor, supervise, and care for the health, safety, and well-being of passengers on the rollercoaster, and (iii) to mitigate the rollercoaster's known risks to, and to not threaten, the health, safety, and well-being of, passengers on the rollercoaster; (g) consciously failed to take any other reasonable action that they knew or should have known to be required in order to maintain the health, safety, and well-being of passengers on the rollercoaster; and (h) on April 7, 2022, carried Plaintiffs on the rollercoaster, caused or permitted the rollercoaster to abruptly stop while restraining Plaintiffs, failed to monitor, supervise, and care for Plaintiffs' health, safety, and wellbeing, and thereby caused Plaintiffs to suffer substantial injuries. (Id.,

¶23.) Plaintiffs are informed and

believe that each employer Defendant had advance knowledge of the unfitness of

the employees and authorized/ratified the employees' wrongful conduct because prior similar incidents occurred at Universal Orlando and Universal Japan on various dates from June 2010 to August 2018.

(Id., ¶24(a)-(f).) Plaintiffs

are informed and believe that the advance knowledge, conscious disregard, and authorization/ratification of each corporate employer Defendant was on the party of an officer, director, or managing agent, such that: (a) they committed the acts on Defendant's behalf; (b) they had advance knowledge of the unfitness of each ride operator in reckless disregard to Plaintiffs' safety; (c) they allowed ride operators to exercise substantial independent authority and judgment over decisions of corporate policy (e.g., decisions regarding how to respond to stoppages, monitor passengers, restart the rollercoaster, etc.); (d)-(e) they had advance knowledge of ride operators' unfitness; (f) they authorized the ride operators' conduct; and (g) they knew of the ride operators' wrongful conduct and adopted/approve such conduct. (Id.,

¶25(a)-(g).) Plaintiffs allege Defendant

and its employees deliberately placed Plaintiffs in an injurious position and withheld necessary care and services in conscious disregard to the high probability of Plaintiffs' health, safety, and well-being. (Id.,

¶26.)

In the Negligence Cause of Action, Plaintiffs allege that Defendant breached their duty by failing to implement reasonable and proper inspection policies and procedures, failing to properly train employees to inspect and guard against dangerous conditions, failing to provide proper warning, failing to repair mechanical issues or provide proper backups/generators, permitting rollercoasters to operate during rolling power outages, etc. (SAC, ¶29.)

The Common Carrier Liability Cause of Action also alleges that Defendant had a duty as a common carrier to use the highest care and use reasonable skill to provide everything necessary for safe transportation. (Id., ¶¶41-44.) Paragraphs 21-26 in connection with the Premises Liability Cause of Action are essentially realleged in paragraphs 34-39 and 50-55 for the Negligence and Common Carrier Liability Causes of Action, respectively.

Based on the Court's review of the SAC, the allegations currently lack the requisite particularity necessary to allege punitive damages.

First, while Plaintiffs have added more paragraphs to the SAC, the additional "facts" are conclusory and lack specificity regarding

Defendant's conduct that amounted to malice, oppression, and/or fraud. Particularly, in paragraph 23(a)-(h), Plaintiffs allege various theories but fail to allege specific facts that Defendant engaged in intentional conduct to cause Plaintiffs injury or engaged in despicable conduct with a willful and conscious disregard of Plaintiffs' rights or safety. While Plaintiffs are correct that they need not prove their claim for punitive damages at the pleading stage, there is still a higher pleading standard for specific and particularized facts in order to allege punitive damages.

Second, the allegations regarding Defendant's officers, directors, managing agents, etc., are also lacking specificity. It appears that Defendant seeks to characterize "rider operators" as managing agents. (See SAC, ¶25.) Plaintiffs define "rider operator" as "Said Defendant's officer, director, or managing agent assigned one or more employees (hereinafter, each a 'Ride Operator', generally or together, the 'Ride Operators') to maintain, operate, monitor, and supervise the rollercoaster, to monitor and care for passengers', including the Plaintiffs', rights and safety, while knowing in advance of the unfitness of each such Ride Operator and in reckless disregard of the Plaintiffs' rights and safety." (SAC, ¶25(b).) But again, the allegations are conclusory (and somewhat circular) and fail to show that an officer, director, or managing agent had advance knowledge and authorized/ratified the oppressive, malicious, and/or fraudulent conduct.

Third, Plaintiffs' allegations of prior incidents are vague. Plaintiffs allege that Defendant had advance knowledge shown by prior similar incidents related to the rollercoaster and related to similarly designed, manufactured, operated, maintained, and supervised rides at other locations including Universal Orlando and Universal Japan (defined as an "Analogue Ride"). (SAC, ¶24.) Plaintiffs then cite examples from June 2010 to August 2018 without stating specifically where the incidents took place, what the "Analogue Ride" entailed (did it involve the same Harry Potter ride or some other ride at the various parks?), etc. At this point, the Court cannot ascertain the relevance of these allegations as it is unclear if incidents dating back nearly 12 years were similar or related to the subject Harry Potter ride, whether the same mechanisms existed in the Harry Potter ride 12 years ago (if it existed then) at the other parks compared to the Hollywood location, etc.

The Court notes that on January 16, 2026, the Court granted

with leave to amend Defendant's motion to strike the punitive damages allegations from the FAC. The Court ordered the parties to cooperate in good faith with their discovery obligations, as Plaintiffs claimed that Defendant's refusal to respond to discovery prevented Plaintiffs from alleging the full facts in their pleadings. In their opposition to the motion to strike portions of the SAC, Biane Plaintiffs again request leave to amend after their present discovery disputes have concluded. (The Court notes it conducted an Informal Discovery Conference on July 7, 2026 and Defendant was ordered to provide supplemental discovery responses by July 24, 2026.)

The motion to strike portions of the SAC is granted with leave to amend.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant Universal

City Studios, LLC's Motion to Strike

Portions of the SAC came on regularly for hearing on July 17, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE Motion TO STRIKE IS GRANTED WITH 60 DAYS' LEAVE TO AMEND TO PROVIDE SUFFICIENT TIME FOR THE PARTIES TO RESOLVE THEIR DISCOVERY DISPUTES AND FOR PLAINTIFF TO FILE AN AMENDED PLEADING UPON RECEIPT OF DEFENDANT'S DISCOVERY RESPONSES.

DEFENDANT TO PROVIDE NOTICE.

IT IS SO ORDERED.